

25TRCV03001 25TRCV03001

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-09-23

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Case Number: 25TRCV03001 Hearing Date: September 23, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

EDITH JUAREZ

;

Plaintiff,

vs.

1ST

CHOICE DRIVING AND TRAFFIC SCHOOL

, et al.;

Defendants.

Case

No.:

25TRCV03001

Hearing

Date:

September
23, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

GILBERTO CARILLO'S MOTION TO COMPEL PLAINTIFF ALEX CULMA'S RESPONSES TO FORM
INTERROGATORIES (SET ONE)

(2)

defendant

GILBERTO CARILLO'S MOTION TO COMPEL PLAINTIFF ALEX CULMA'S RESPONSES TO REQUESTS
FOR PRODUCTION (SET ONE)

(3)

defendant

GILBERTO CARILLO'S requests for monetary sanctions

MOVING PARTY: Defendant, Gilberto Carillo

RESPONDING

PARTY: Plaintiff, Alex Culma

(1)

Defendant

Gilberto Carillo's Motion to Compel Plaintiff Alex Culma's Responses to Form
Interrogatories (Set One) is DENIED pursuant to Code of
Civil Procedure section 2030.290, subdivision (b).

(2)

Defendant

Gilberto Carillo's Motion to Compel Plaintiff Alex Culma's Responses to Requests

for Production (Set One) is DENIED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(3)

Defendant

Gilberto Carillo's Requests for Monetary Sanctions are GRANTED in the reduced amount of \$1,575.00 pursuant to Code of Civil Procedure sections 2023.010 and 2023.030.

The Court considers the moving papers filed on July 17, 2026, the opposition brief filed on September 10, 2026, and the reply brief filed on September 16, 2026.

BACKGROUND

Factual Background

In Case No. 25TRCV03001, on September 3, 2025, plaintiff Edith Juarez filed the Complaint against defendants 1st Choice Driving and Traffic School, Gilbert Carillo, and DOES 1 through 30. The Complaint includes the following two causes of action: (1) Motor Vehicle and (2) General Negligence.

In Case No. 25TRCV03111, on September 10, 2025, plaintiff Alex Culma filed the Complaint against defendants Bukiwe Eunice Zonke, Gilberto Carillo, and DOES 1 through 50. The Complaint includes the following two causes of action: (1) Motor Vehicle and (2) General Negligence.

On February 27, 2026, Carillo served a set of discovery requests on Culma, including: (1) Form Interrogatories (Set One) and (2) Request for Production of Documents, Set One. (Declaration of John K. Flock re: FROG ("FROG Flock Decl."), ¶ 2, Exh. A; RPD Declaration of John K. Flock re: RPD ("RPD Flock Decl."), ¶ 2, Exh. A.)

In the absence of any extensions, responses to these requests were due by April 2, 2026. (FROG Flock Decl., ¶ 3; RPD Flock Decl., ¶ 3.) However, Culma did not provide any responses by this deadline. (FROG Flock Decl., ¶ 4; RPD Flock Decl., ¶ 4.)

Carillo extended several

extensions to Culma, making the discovery responses due by June 11, 2026. (FROG Flock Decl., Exh. B; RPD Flock Decl., Exh. B.)

In Case No. 25TRCV03001, Juarez filed an amendment to the Complaint on May 15, 2026, naming Bukiwe Eunice Zonke as DOE 1.

On June 1, 2026, the Court signed the Stipulation to Consolidate Cases, designating Case No. 25TRCV03001, Juarez v. 1st Choice Driving and Traffic School, et al., as the lead case.

On June 23, 2026, Carillo sent Culma a meet-and-confer letter indicating that no responses had been received by June 11, 2026. (FROG Flock Decl., ¶ 5, Exh. B; RPD Flock Decl., ¶ 5, Exh. B.) Carillo extended Culma's response deadline to June 30, 2026. (FROG Flock Decl., ¶ 5, Exh. B; RPD Flock Decl., ¶ 5, Exh. B.) Despite this extension, Culma did not provide any responses by the new deadline. (FROG Flock Decl., ¶ 6; RPD Flock Decl., ¶ 6.) As of the filing date, July 17, 2026, Culma had not provided any responses. (FROG Flock Decl., ¶ 7; RPD Flock Decl., ¶ 7.)

Ultimately, on August 14, 2026, Culma provided responses to Carillo's discovery requests. (Opp., p. 2:10-11.)

Procedural Background

On July 17, 2026, Carillo filed these two motions. On September 10, 2026, Culma filed an omnibus opposition brief. On September 16, 2026, Carillo filed an omnibus reply brief.

LEGAL STANDARD

A party must respond to interrogatories and requests for production within thirty (30) days after service. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.260, subd. (a).)

If a party to whom interrogatories are directed does not provide

timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 (Sinaiko).)

Further, when there has been no timely response to a Code of Civil Procedure section 2031.010 demand, the demanding party may seek an order compelling a response. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to respond in a timely manner waives all objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from a waiver, they cannot raise objections to the documents demanded. There is no time limit for a motion to compel responses to a demand for inspection, copying, testing, or sampling other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2031.300.) Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (Code Civ. Proc., § 2031.300.) Where the motion seeks only a response to the inspection demand, no showing of “good cause” is required. (Code Civ. Proc., § 2031.300.)

Under Code of Civil

Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Discovery

Motions

At the time of filing, on July 17, 2026, Culma had not provided any responses. (FROG Flock Decl., ¶ 7; RPD Flock Decl., ¶ 7.) However, on August 14, 2026, Culma served responses to each set of discovery requests. (Opp., p. 2:10-11.)

Since Culma served responses before the hearing, the Court DENIES the motions as MOOT. If Carillo wishes to challenge the adequacy or format of the responses, the appropriate procedure is to file a motion to compel further responses pursuant to Code of Civil Procedure sections 2030.300 and 2031.310.

Requests

for Sanctions

Carillo requests \$2,475.00 in sanctions to cover attorneys’ fees associated with each motion to compel, resulting in a total request of \$4,950.00. (FROG MTC, pp. 4:10-5:2; RPD MTC, pp. 4:11-5:4.) These requests are made under the Code of Civil Procedure sections 2023.010, 2023.030, 2030.290, and 2031.300. (FROG MTC, p. 4:14-23; RPD MTC, p. 4:15-25.)

These requests

are supported by declarations from Carillo’s counsel, John K. Flock. In these declarations, Flock indicates that they spent 4.5 hours on each motion to meet and confer and prepare the motion,

charging a rate of \$225.00 per hour. (FROG Flock Decl., ¶ 9; RPD Flock Decl., ¶ 9.) Flock anticipates taking 3.5 hours to prepare each reply and an additional 3.0 hours to prepare for and attend each hearing. (FROG Flock Decl., ¶ 9; RPD Flock Decl., ¶ 9.) In total, this amounts to 11.0 hours per motion. (FROG Flock Decl., ¶ 9; RPD Flock Decl., ¶ 9.)

Culma contends that his “conduct does not warrant monetary sanctions because other circumstances make sanctions unjust and any sanction would be disproportionate to the alleged dereliction.” (Opp., p. 3:12-13.) He maintains that the situation is unjust because he provided his responses on August 11, 2026, and claims that “[t]he discovery purpose has been fulfilled, and Carillo’s ability to prepare the case has not been impaired.” (Opp., p. 3:15-21.) Furthermore, Culma argues that he did not abuse the discovery process, as he received multiple extensions from Carillo to submit his responses. (Opp., p. 3:22-27.) The Court, however, disagrees with these assertions.

The Court finds that Culma has indeed abused the discovery process by failing to provide timely responses, submitting them nearly one month after Carillo filed this motion. Culma has not provided any justification for the delay in his responses, which seem to have been submitted only in reaction to Carillo’s motions. The Court does not consider the imposition of monetary sanctions to be unjust in this circumstance; however, it agrees that Carillo’s total request is excessive for this type of motion.

The Court deems the amounts requested as excessive, particularly given the straightforward nature of the motions, their nearly identical content, and the omnibus reply. Consequently, the Court GRANTS the requests in a reduced amount of \$1,575.00 for 7.0 hours of work.

ORDERS

1) Defendant

Gilberto Carillo’s Motion to Compel Plaintiff Alex Culma’s Responses to Form Interrogatories (Set One) is DENIED.

2) Defendant

Gilberto Carillo's Motion to Compel Plaintiff Alex Culma's Responses to Requests for Production (Set One) is DENIED.

3) Defendant

Gilberto Carillo's Requests for Monetary Sanctions are GRANTED in the reduced amount of \$1,575.00.

4) Plaintiff

Alex Culma shall pay Carillo's counsel \$1,575.00 on or before October 15, 2026.

5) The

Court orders Carillo to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 23, 2026

Tamara

Hall

Judge

of the Superior Court